



5th SEPTEMBER 2025

B9 L4 EMERALD ST., COUNTRY HOMES SUBD., BRGY. CABANTIAN, DAVAO CITY,
DAVAO DEL SUR

CARL DAVE TUPAZ

Dear Carl,

We are pleased to confirm your **PROBATIONARY** employment with us under the following terms and conditions:

POSITION TITLE: ELECTRICAL ESTIMATOR
IMMEDIATE SUPERIOR: BRADLY EASTMAN
EFFECTIVE DATE: 15 SEPTEMBER 2025
BASIC SALARY: PHP 40,000.00 per month
ALLOWANCE: PHP 5,000.00 per month.
APPOINTMENT: PROBATIONARY

1. **Employment Period** – Your probationary employment commences on **15 SEPTEMBER 2025**, provided that you are able to submit the pre-employment requirements prior to the commencement of your employment. You will be on probation for **six (6) months**. During this period, your performance will be evaluated based on the following standards:

Estimating & Tendering

- Review drawings, specifications, and scopes to determine material, labour, and subcontractor requirements
- Prepare detailed and accurate cost estimates using SimPro
- Source, compare, and negotiate supplier and subcontractor pricing
- Assist in preparing tender submissions, proposals, and supporting documents

Technical Support

- Interpret electrical and solar plans to ensure precise take-offs

info@resourcestaff.com.au

Level 3, 41-43 Ord Street, West Perth
6005



- Provide input on cost control, value engineering, and alternative solutions
- Contribute to sustainable and energy-efficient project approaches

Administrative Support

- Maintain accurate records of estimates, quotes, and supplier correspondence
- Generate purchase orders, variations, and progress claims as required
- Update project and job data in SimPro to ensure accurate tracking
- Prepare and format reports, spreadsheets, and client-facing documents

Communication & Coordination

- Liaise with suppliers, subcontractors, and internal teams to clarify project requirements
- Coordinate information flow between estimating, operations, and management
- Respond to enquiries and provide professional updates on estimates and tender progress

If your performance does not meet the company's standards during the probationary period, your employment may be terminated. However, if you meet the standards as assessed by management, you will receive a notice of regularization.

2. **Work Schedule and Break Policy** - The ordinary work schedule is from Monday to Friday, 6:00 A.M. to 3:00 P.M., **unless otherwise instructed.**

Daily minimum work hours: Eight (8) actual work hours, exclusive of meal breaks.

Weekly minimum work hours: Forty (40) actual work hours, exclusive of meal breaks.

Two (2) paid breaks of 15 minutes each are provided daily.

One (1) unpaid meal break of 60 minutes is provided daily. The specific start and end times of meal breaks may vary.



3. **Overtime Work Policy** - Overtime work is compensable only if permitted or required by the COMPANY, in accordance with applicable laws. As outlined in Article 87 of the Labor Code and Section 8, Rule I, Book Three of its Implementing Rules and Regulations:

“Overtime pay – Any employee covered by this Rule who is permitted or required to work beyond eight (8) hours on ordinary working days shall be paid an additional compensation for the overtime work.”

If the client permits or requires overtime work under circumstances defined by the Labor Code, it shall be deemed as permission or requirement made by the company. Consequently, such overtime work shall be compensable.

4. **Compensation** – Your gross compensation is **PHP 45,000.00** per month, inclusive of **PHP 5,000.00** allowance. After deductions, the net income shall be payable.

The compensation shall be payable bi-monthly on the **5th** and **20th** day of each month.

5. **Duties and Responsibilities** – You hereby consent to be assigned primarily the duties and responsibilities specifically described in Annex “A” hereof, without being limited thereto. The Company reserves the right to appoint you to other tasks and responsibilities.
6. **Taxes, Government Contributions, Authority to Deduct** – You hereby agree to deductions authorized by law, including but not limited to, withholding tax, SSS, Philhealth, Pag-IBIG, debts owing to Company, and all other analogous deductions.
7. **Monetary Benefits and Leaves** – Unless otherwise provided in the company policies, statutory monetary benefits and leaves will be provided to you whenever due and proper.



The company will provide you with Health Maintenance Organization (HMO) coverage or health insurance starting on your first day of employment, including coverage for one free dependent.

You also have the option to apply for additional dependents. However, you will be responsible for paying 100% of the premiums for any additional dependents.

8. **Violations and Disciplinary Actions** – The company reserves the right to terminate your employment during the effective period of this Agreement if, after due notice and hearing, you are found to have violated any of the terms and conditions of this Agreement, any company rule, regulation, policy, or instruction, or for any just or authorized cause under existing laws and jurisprudence.

Termination may occur for any of the following reasons, but is not limited to:

- a. Gross misconduct;
- b. Inefficiency;
- c. Incompetence;
- d. Unjustified absences or habitual tardiness;
- e. Neglect of duties;
- f. Abandonment of work;
- g. Insubordination;
- h. Breach of confidentiality or non-disclosure obligations;
- i. Just or authorized causes as stated in the Labor Code;
- j. Other causes outlined in the COMPANY's Rules and Regulations;
- and
- k. Other analogous causes.

9. **Voluntary Termination** - In the event that you voluntarily decide to terminate your employment with the Company, you shall serve a 30-day written notice prior to the official date of resignation to allow for a smooth turnover of all responsibilities and documents, unless expressly approved by the Company.
10. **Effect of Termination** - Upon termination of your employment, you shall promptly turn over to your superior or the designated company



representative all documents, records and any other property which relate to the business activities of the Company.

11. **Non-Disclosure and Liquidated Damages** - You shall not divulge any proprietary or confidential information or documents of the Company, matters relating to the business of the Company, or matters relating to any customer which may become known to you by reason of your employment or otherwise, except as may be necessary in the interests of the business.

Additionally, during your employment with the Company, you are not permitted to be employed by, or work with, any other company, whether directly or indirectly, without prior written consent from the Company.

In case of non-compliance with or violation of any of the above provisions, you shall pay the Company liquidated damages equivalent to two (2) months' gross compensation.

12. **Company Policies** – You hereby agree and consent to the terms and conditions stated in company policies, written or unwritten, as well as all its Rules and Regulations, which are incorporated herein by reference and made an integral part hereof.
13. **Entirety of Agreement** – The parties hereby agree that this Agreement and those which are incorporated herein by reference constitute the entire employment contract and supersedes all prior arrangements, whether verbal or written.
14. Your signature affixed below indicates your acceptance of the foregoing terms and attests to the veracity of all information herein incorporated and agreed on; and that you hereby undertake that upon signing of this contract, you shall hold the Company free from any liability arising or related your previous employment.

For and in consideration of the above terms and conditions RSS Incorporated through its designated representative and the employee hereby affix their signatures to signify mutual agreement.



With your acceptance, we welcome you to the Company and hope you will find your work both pleasant and rewarding as we look forward to a mutually beneficial working relationship.

Annexure A

Key Responsibilities

Estimating & Tendering

- Review drawings, specifications, and scopes to determine material, labour, and subcontractor requirements
- Prepare detailed and accurate cost estimates using SimPro
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- Respond to enquiries and provide professional updates on estimates and tender progress

Annex B - Benefits

A. Holidays

1. All employees are required to observe swapped holidays unless specifically advised otherwise by the company. The company reserves the right to adjust holiday schedules as needed, in accordance with operational requirements and applicable laws.

Swapped holidays will be observed without premium pay unless they are unmatched with the client's requirements. For unmatched holidays worked, employees are entitled to the applicable premium pay for regular holidays.

Work performed on both matched and unmatched holidays will be compensated at 200% of the employee's daily wage. Overtime work on these days will entitle the employee to an additional 30% of the hourly rate, calculated as follows:

$(\text{Daily Rate} \div 8) \times 200\% \times 130\% \times \text{Number of OT Hours} = \text{Pay for the Day}$

2. The "no work, no pay" principle applies during special days. However, work performed on special days merits additional compensation of at least thirty percent (30%) of the basic wage.

B. 13th Month Pay.

Paid before the 24th December and based upon your basic pay as mandated by the Presidential decree 851.

C. Premium Pay



1. Work performed on rest days - There shall be an additional 30% of the daily wage on work performed on rest days.

2. Work performed on rest day which is also a special day - There shall be an additional 50% of the daily wage on work performed on a special day.

D. Overtime pay

1. For work in excess of eight (8) hours performed on ordinary working day - There shall be additional 25% of the hourly rate for work performed in excess of eight (8) hours.

2. For work in excess of eight (8) hours performed on a schedule rest day or a special day - There shall be additional 30% of the hourly rate for work performed in excess of eight (8) hours.

3. For work in excess of eight (8) hours performed on a special day which falls on a rest day - There shall be additional 30% of the hourly rate for work performed in excess of eight (8) hours.

E. Night Shift Differential

This refers to additional compensation of ten percent (10%) of an employee's regular wage for each hour of work performed between 10 pm and 6 am.

F. Leaves

All employees are given vacation leaves of fifteen (15) days each year (or 1.25 vacation leave credits every month) and sick leave of five (5) days each year (or 0.42 sick leave credits every month).

An employee can avail only of accumulated vacation/sick leave credits at the time of application/absence. All vacation/sick leave credits are cumulative but not convertible to cash.



Employees on probationary status commence to earn leave credits from the date of employment but can only avail of them beginning the month following their probationary period.

Employees are entitled to carry over a maximum of five (5) unused vacation leave days from the current year to the following year. Any unused vacation leave credits exceeding five (5) days will be forfeited.

Unused leave credit for employees who are terminated for cause shall be forfeited.

Vacation Leave – Request forms must be completed at least 2 weeks in advance. All vacation leave requests are subject to approval by the Employee's direct supervisor.

Sick Leave – The Employee must complete and submit sick leave forms upon their return to work. A medical certificate is required if the Employee is absent for more than two (2) consecutive days or if the absence occurs immediately before or after a scheduled leave period.

Maternity Leave – Applies to all female employees. 105 days (Normal / Cesarean Delivery) or 60 days (Miscarriage or Emergency Termination of Pregnancy)

Paternity Leave – Applies to all legally married male employees for up to seven days as provided by law (RA 8187)

Solo Parent Leave – Up to seven working days. Non-cumulative and non-convertible to cash. As provided by the Solo Parent Act (RA 8972)

Victim of Violence Leave – Women employee for up to ten working days as provided by the Act of Victims of Violence against woman and their children (RA 9262) Non-cumulative and non-convertible to cash.

A handwritten signature in black ink, appearing to read 'Neil Anthony Costelloe', written over a horizontal line.

Neil Anthony Costelloe
General Manager

CONFORME:

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Level 3, 41-43 Ord Street, West Perth
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CARL DAVE E. TUPAZ
EMPLOYEE

Date: SEPTEMBER 8, 2025